

Amendment No. 1 to HB0810

Howell
Signature of Sponsor

AMEND Senate Bill No. 728*

House Bill No. 810

by deleting all language after the enacting clause and substituting instead the following:

SECTION 1. Tennessee Code Annotated, Section 55-8-185, is amended by deleting the section and substituting instead the following:

(a) For the purposes of this section, "utility terrain vehicle" means:

- (1) A low speed vehicle;
- (2) A medium speed vehicle;
- (3) A Class I off-highway vehicle;
- (4) A Class II off-highway vehicle; or
- (5) An all-terrain vehicle.

(b) In order to operate a utility terrain vehicle under this section:

- (1) The utility terrain vehicle must be registered in accordance with chapters 3 and 4 of this title;
- (2) The utility terrain vehicle must be covered by a liability policy that meets the requirements of the financial responsibility law in chapter 12, part 1 of this title;
- (3) The operator must be sixteen (16) years of age or older;
- (4) The operator must possess a valid driver license, which does not include a permit;
- (5) Unless exempted under § 55-9-302(b), the operator and each passenger must wear a helmet that meets the standards contained in 49 CFR 571.218, or, if the driver or passenger is twenty-one (21) years of age or older, a

helmet meeting the standards described in § 55-9-302(a)(1)-(4); provided, that operation on a county road of a utility terrain vehicle that is a Class I or Class II off-highway vehicle is exempt from the requirement of this subdivision (b)(5);

(6) The utility terrain vehicle cannot be transporting any passenger that requires a child passenger restraint system as required in § 55-9-602;

(7) The utility terrain vehicle must be operated only during daylight hours, which includes the thirty (30) minutes before dawn and the thirty (30) minutes after dusk, unless otherwise specified in this section; provided, that this subdivision (b)(7) does not apply to:

(A) A utility terrain vehicle operated for agricultural purposes; or

(B) A publicly owned and operated utility terrain vehicle that is used for wildlife management, law enforcement, emergency services, or other such purposes; and

(8)

(A) If the utility terrain vehicle is equipped with any of the following from the manufacturer, or added later, then they must be operational and utilized at all times while operating the vehicle:

(i) Brakes;

(ii) At least two (2) taillights, stoplights, and headlights;

(iii) Two (2) turn signal lamps or other devices meeting the requirements of § 55-8-144;

(iv) A horn meeting the requirements of § 55-9-201;

(v) A roll bar;

(vi) Seat belts for each seat;

(vii) A manufacturer-installed or equivalent spark arrester;

(viii) A manufacturer-installed or equivalent muffler in proper working order and properly connected to the vehicle's exhaust system; and

(ix) A windshield, with or without wipers, except, that if the vehicle is not equipped with a windshield, then the operator and each passenger shall wear glasses containing impact-resistant lenses, safety goggles, or a face shield;

(B) Operation of the following utility terrain vehicles are exempt from the registration requirements of chapter 4, part 7 of this title, and equipment and safety requirements of this section:

(i) A utility terrain vehicle operated on any private or public recreational trail or area;

(ii) A utility terrain vehicle operated on an affiliated trail or area operated by a person or entity which has in place a safety program;

(iii) A utility terrain vehicle operated for agricultural purposes; and

(iv) A publicly owned and operated utility terrain vehicle that is used for wildlife management, law enforcement, emergency services, or other such purposes.

(c)

(1) A utility terrain vehicle may be operated on any state highway where the speed limit is forty-five miles per hour (45 mph) or less or any county road in the state, and is not:

(A) A part of the interstate and national defense highway system;

(B) A controlled access highway;

(C) Prohibited by a county or municipality on any road under its jurisdiction if the governing body of the county or municipality has determined that the prohibition is necessary in the interest of safety; or

(D) Prohibited by the department of transportation on any road under its jurisdiction if it has determined, in consultation with the department of safety, that the prohibition is necessary in the interest of safety.

(2) A utility terrain vehicle operated on county roads pursuant to subdivision (c)(1) may, for the purpose of crossing from one (1) road, field, or area of operation to another, be operated upon a state highway or other noncounty road with a speed limit in excess of forty-five miles per hour (45 mph), except upon the interstate and national defense highway system, if:

(A) On a two-lane highway, only to cross the highway at an angle of approximately ninety degrees (90°) to the direction of the roadway and at a place where a quick and safe crossing may be made;

(B) With respect to the crossing of a highway having more than two (2) lanes, or a highway having limited access, to cross these highways in a quick and safe manner at a place designated by the department of transportation or local government authorities, as applicable, as a place where such utility terrain vehicles may cross the highways and if the respective authorities erect appropriate signs of a type approved by the department, at the designated crossing places;

(C) The utility terrain vehicle is brought to a complete stop before crossing the shoulder or main traveled way of the highway;

(D) The operator yields the operator's right-of-way to all oncoming traffic that constitutes an immediate potential hazard; and

(E) Both the headlights and taillights, if equipped, are illuminated when the crossing is made.

(d) A utility terrain vehicle may be operated only at a rate not to exceed thirty-five miles per hour (35 mph).

(e) A person operating a utility terrain vehicle upon a state highway or county road pursuant to this section shall obey all of the duties applicable to the driver of a motor vehicle under part 1 of this chapter, and chapter 10, parts 1-5 of this title, except as to those provisions that by their nature can have no application.

(f) Notwithstanding subsection (c), a utility terrain vehicle in compliance with subsections (b) and (d) may also be operated on the following:

(1) Within the jurisdiction of Scott County:

(A) Oneida & Western (O&W) Railroad Road from its intersection with Verdun Road southwestward to its terminus; and

(B) State Route 63 between U.S. Highway 27 and Annadell Road within the jurisdiction of the Town of Huntsville in Scott County on any two (2) weekends per year during the hours of daylight, which includes the thirty (30) minutes before dawn and the thirty (30) minutes after dusk; except, that during one (1) day on each weekend, the off-highway vehicles may be operated during the hours of daylight or nighttime until twelve o'clock (12:00) midnight. The operation pursuant to this subdivision (f)(1)(B) shall be approved by a two-thirds (2/3) vote of the local legislative body of the municipality and monitored by a local law enforcement agency. Any local legislative body that has approved the operation of the vehicles pursuant to this subdivision (f)(1)(B) as it existed prior to April 28, 2017, shall not be required to resubmit and reapprove the operation pursuant to this subdivision (f)(1)(B) on or after April 28, 2017;

(2) Within the jurisdiction of Anderson County:

(A) State Route 62 from its intersection with Wind Rock Road westward to its intersection with Winter Gap Road, then southeastward on Winter Gap Road to its intersection with State Route 61 (Railroad Avenue), then eastward on State Route 61 (Railroad Avenue) to its intersection with State Route 62, within the jurisdiction of Oliver Springs in Anderson County; provided, that the operation is approved by a two-thirds (2/3) vote of the local legislative body of the municipality and monitored by a local law enforcement agency;

(B) State Route 330 from its intersection with State Route 62 westward to its intersection with State Route 61, then southwestward on West Spring Street to its intersection with Winter Gap Road, within the jurisdiction of Oliver Springs in Anderson County; provided, that the operation is approved by a two-thirds (2/3) vote of the local legislative body of the municipality and monitored by a local law enforcement agency;

(C) State Route 330 from its intersection with Hoskins Gap Road in Anderson County westward to its intersection with Railroad Avenue and then north and westward to its intersection with Winter Gap Road in the jurisdiction of Oliver Springs in Roane County;

(D) Windrock Road between Main Street and Hoskins Valley Road;

(E) Hoskins Valley Road between Windrock Road and Hoskins Gap Road;

(F) Hoskins Gap Road between Hoskins Valley Road and Frost Bottom Road;

(G) State Route 116 from its intersection with Beech Grove Lane to its intersection with U.S. Highway 25W;

(H) State Route 116 (U.S. Highway 25W) from its intersection with Colonial Lane southward to its intersection with Jacksboro Avenue;

(I) Mountainside Lane from 120 Mountainside Lane to its intersection with Colonial Lane, and then southeastward on Colonial Lane to its intersection with State Route 116 (U.S. Highway 25W);

(J) Boling Road from 167 Boling Road to its intersection with Railroad Avenue, then southward on Railroad Avenue to its intersection with Norris Freeway (U.S. Highway 441), and then eastward on Norris Freeway (U.S. Highway 441) to its intersection with State Route 116 (U.S. Highway 25W);

(K) State Route 116 (U.S. Highway 25W) from its intersection with Fork Mountain Road to its intersection with Windrock Trail, which is designated by the wildlife resources agency as G-71;

(L) State Route 116 (U.S. Highway 25W) from its intersection with Colonial Lane to its intersection with Better Chance Road;

(M) U.S. Highway 441 (Norris Freeway) from its intersection with State Route 116 (U.S. Highway 25W) to 709 Norris Freeway;

(N) State Route 116 from its intersection with State Route 330 to its intersection with Windrock Park Trail 74; and

(O) State Route 116 from its intersection with State Route 330 to its intersection with Windrock Park Trail 75;

(3) Within the jurisdiction of Campbell County:

(A) State Route 63 from its intersection with Ershell Collins Road West to its intersection with Titus Hollow Road;

(B) State Route 63 from its intersection with Old Stinking Creek Road West to its intersection with Old Highway 63;

(C) State Route 116 from its intersection with U.S. Highway 25W (State Route 9) West to its intersection with Better Chance Road;

(D) U.S. Highway 25W (State Route 9) from its intersection with State Route 116 to its intersection with Dogwood Road;

(E) U.S. Highway 25W (State Route 9) from its intersection with North Tennessee Avenue to its intersection with Ivy Dale Road;

(F) U.S. Highway 25W (State Route 9) from its intersection with McClouds Trail to 4267 U.S. Highway 25W South, which segment is approximately two and one-half (2.5) miles long;

(G) U.S. Highway 25W (State Route 9) from its intersection with Elk Tower on Austin Powder Road to the Peabody Convenience Center;

(H) U.S. Highway 25W (State Route 9) from its intersection with Highcliff Road to its intersection with the Kentucky state line at State Street;

(I) State Route 297 from its intersection with U.S. Highway 25W to its intersection with London Avenue;

(J) State Route 297 from its intersection with Woolridge Pike to its intersection with Whistle Creek Road; and

(K) U.S. Highway 25W from TN Exit 160 to Crouches Creek Hollow Road;

(4) Within the jurisdiction of Morgan County:

(A) State Route 116 from its intersection with Rattlesnake Ridge Road, which is approximately one and two-tenths (1.2) miles north of State Route 62, then northward on State Route 116 for approximately three and four-tenths (3.4) miles to its intersection with the walking trails

of Frozen Head State Park and Trail 27 of Wind Rock Park, within Morgan County between the hours of eight o'clock a.m. (8:00 a.m.) and eight o'clock p.m. (8:00 p.m.);

(B) State Route 329 from its intersection with U.S. Highway 27 to 849 Deer Lodge Highway, within the jurisdiction of the City of Sunbright;

(C) Old Burrville Road, which is approximately one-half (.5) mile in length, within the jurisdiction of the City of Sunbright;

(D) Dyna Tex Road, which is approximately one (1) mile in length, within the jurisdiction of the City of Sunbright;

(E) Mill Creek Road, the portion of which is within the jurisdiction of the City of Sunbright; and

(F) U.S. Highway 27 from its junction with Mill Road northward to its junction with State Route 62;

(5) Within the jurisdiction of Jackson County, the portion of State Route 53 beginning from the Granville Marina and Resort and ending at the Sutton Homestead in the Town of Granville;

(6) Within the jurisdiction of Johnson County:

(A) State Route 167 from mile marker 10 to mile marker 13;

(B) State Route 133 from its intersection with U.S. Highway 421 to the Tennessee-Virginia state line;

(C) U.S. Highway 421 from the Mountain City limits to its intersection with Corner Road;

(D) State Route 167 from its intersection with Rainbow Road to its intersection with Dotson Lane, within the jurisdiction of Mountain City, which segment is approximately one-half (.5) mile; and

(E) State Route 167 from the entrance of the Roan Creek Campground to Doe Mountain, which segment is approximately one-half (0.5) mile;

(7) Within the jurisdiction of Perry County, the portion of State Route 13 from the Wayne County – Perry County boundary to its intersection with Turnbo Lane;

(8) Within the jurisdiction of Unicoi County:

(A) State Route 173 (Simerly Creek Road) from its intersection with State Route 107 to its intersection with Old Iron Mountain Road;

(B) State Route 107 from its intersection with State Route 173 (Simerly Creek Road) eastward to its intersection with Lower Stone Mountain Road, which is near Deer Haven Road; and

(C) State Route 107 from its intersection with Cross Road to its intersection with Red Fork Road;

(9) Within the jurisdiction of Fentress County:

(A) State Route 154 from its intersection with Black House Mountain Road southward to its intersection with Laurel Creek Campground Road, then continuing on Laurel Creek Campground Road and ending at the campground; and

(B) State Route 297 beginning at its intersection with State Route 154 and ending at Station 11 of the Fentress County fire department, which segment is approximately eight-tenths (0.8) of a mile in length; and

(10) Within the jurisdiction of Hickman County:

(A) State Route 48 North from its intersection with State Route 100 to its intersection with Piney River Road, which is approximately eight and seven-tenths (8.7) miles;

(B) State Route 100 from its intersection with North Tidwell Road to its intersection with Wrigley Road, which is approximately four and one-tenth (4.1) miles; and

(C) State Route 230 West from its intersection with Dodd Hollow Road to its intersection with East Sugar Creek Road, which is approximately one and nine-tenths (1.9) miles.

(g) In addition to subsections (a)-(d), notwithstanding any law to the contrary, a utility terrain vehicle may be operated or driven upon any unpaved streets, roads, or highways, as designated specifically for such purpose upon two-thirds (2/3) vote by the local governing body, within the boundaries of an adventure tourism district established pursuant to title 11, chapter 11, part 2, if the all-terrain vehicle complies with the following:

(1) The utility terrain vehicle is specifically restricted to only between one-half (1/2) hour after sunrise and one-half (1/2) hour before sunset, and the headlight and taillight must be illuminated during such operation;

(2) The operator and all passengers of a utility terrain vehicle shall wear a helmet while driving or operating such vehicle on a street, road, or highway;

(3) Any additional safety requirements imposed by the local governing body for utility terrain vehicle operation on streets, roads, or highways in such jurisdiction; and

(4) A utility terrain vehicle must not be operated on any highway that is a part of the interstate and defense highway system.

(h) Operation of the following utility terrain vehicles are exempt from subsection (g):

(1) Utility terrain vehicles operated for agricultural purposes; and

(2) Publicly owned and operated utility terrain vehicles that are used for wildlife management, law enforcement, emergency services, and other such purposes.

(i) A violation of this section is a Class C misdemeanor, punishable by a fine only of fifty dollars (\$50.00).

(j)

(1) By October 1, 2025, and upon notice or determination of a prohibition thereafter, the department of safety, in consultation with the department of transportation, shall compile, and both departments shall publish to their websites, a list of highways and roads:

(A) That are part of the interstate and national defense highway system;

(B) Where operation of a utility terrain vehicle is prohibited by a county or municipality pursuant to subdivisions (c)(1)(C) and (j)(2); and

(C) Where operation of a utility terrain vehicle is prohibited by the department pursuant to subdivision (c)(1)(D).

(2) A county or municipality may prohibit the operation of a utility terrain vehicle on a road under its jurisdiction in accordance with subdivision (c)(1)(C) with the adoption of a resolution or ordinance, as appropriate, and the submission of a copy of the resolution or ordinance to the department of safety.

SECTION 2. Tennessee Code Annotated, Section 55-8-203, is amended by deleting the section in its entirety.

SECTION 3. Tennessee Code Annotated, Section 55-8-191, is amended by deleting the section in its entirety.

SECTION 4. Tennessee Code Annotated, Section 55-1-125, is amended by deleting the language "pursuant to § 55-8-191(b)(1)" and substituting instead the language ", except as provided in § 55-8-185".

SECTION 5. Tennessee Code Annotated, Section 55-8-101(38), is amended by deleting the language "pursuant to § 55-8-191(b)(1)" and substituting instead the language ", except as provided in § 55-8-185".

SECTION 6. Tennessee Code Annotated, Section 55-50-102(37), is amended by deleting the language "pursuant to § 55-8-191(b)(1)" and substituting instead the language ", except as provided in § 55-8-185".

SECTION 7. Tennessee Code Annotated, Section 55-3-101(d), is amended by deleting the language "§ 55-8-203" and substituting instead the language "§ 55-8-185".

SECTION 8. This act takes effect upon becoming a law, the public welfare requiring it.